

The Democratic Anchorage of Governance Networks

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Governance through the negotiated interaction of a plurality of public, semi-public and private actors seems to provide an efficient means for governing our increasingly complex, fragmented and multi-layered societies. However, the big question is whether governance networks also contribute to the democratic governance of society. Governance network theory and post-liberal theories of democracy claim that there are both democratic problems and potentials associated with interactive network governance. In order to be able to assess, and possibly improve, the democratic performance of governance networks, the authors of this article develop and substantiate an analytical model for measuring the democratic anchorage of governance networks in different political constituencies and in an appropriate set of democratic rules and norms. In addition, it is argued that politicians should play a key role in efforts to ensure the democratic anchorage of governance networks.

Introduction

Policy making and public governance are incongruent with the formal political institutions of parliament and public administration. The formulation and implementation of policy increasingly takes place in and through interactive forms of governance such as user boards, quasi-non-governmental agencies, interorganizational networks, public-private partnerships and quasi-markets. However, this does not mean that central and local governments are hollowed out since many of the old state capacities are still in place and new capacities are developed (Hirst 1994). Although the state still plays a key role in local, national and transnational policy processes, it is nevertheless to an increasing extent 'de-governmentalized' since it no longer monopolizes the governing of the general well-being of the population in the way that it used to do (Rose 1999). The idea of a sovereign state that governs society top-down through laws, rules and detailed regulations has lost its grip and is being

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replaced by new ideas about a decentred governance based on interdependence, negotiation and trust.

In the wake of the many reports on government failure and market failure, public authorities now aim to govern society by involving different kinds of citizens, professionals, voluntary organizations, labour-market organizations and private firms in self-regulating networks. The mobilization and empowerment of active and responsible actors within self-regulating assemblages enable the state to 'govern at a distance' (Rose 1996, 43). This diagnosis is echoed by many policy analysts who claim that we live in an increasingly complex, fragmented and multi-layered society in which efficient governance requires negotiated interaction between a plurality of organizations and groups from state, market and civil society (Mayntz 1991, 1999; Kickert 1993; Rhodes 1997a). As such, governance networks are formed at the local, national and transnational levels, and even sometimes cut across these levels to produce new forms of multi-level governance (Marks et al. 1996; Kohler-Koch & Eising 1999; Scharpf 1999).

Governance networks might contribute to an efficient governance of our complex and functionally differentiated societies, but the question is whether governance networks also lead to democratic governance. So far, the normative question about the democratic problems and potentials of governance networks have only received scant attention, partly due to the political preoccupation with the issue of efficiency within public administration, and partly due to the widespread institutional separation of public administration research and normative political theory. However, the question about the democratic performance of governance networks is placed high on the research agenda of the new second generation of governance network theory (Heffen et al. 2000; Pierre 2000; Wolf 2002; Hajer & Wagenaar 2003; Skelcher et al. 2004; Sørensen & Torfing forthcoming). We shall, in this article, aim to deepen our understanding of democratic network governance by looking at the prospects for the democratization of governance networks. We claim that in order to improve the democratic performance of governance networks, we must enhance their democratic anchorage in elected politicians, the membership basis of the participating groups and organizations, a territorially defined citizenry and a democratic grammar of conduct.

The argument proceeds as follows: The first section defines the notion of 'governance network' and discusses its distinctive character as a mechanism of governance. The next section looks at the different theoretical assessments of the democratic implications of interactive network governance. The third section develops and substantiates the idea of a fourfold democratic anchorage of governance networks, and the last section briefly discusses how governance networks can be democratically anchored through meta-governance.

Governance Networks

Governance networks are a particular form of governance, and a particular kind of network. As such, we can define a 'governance network' as:

- a relatively stable horizontal articulation of *interdependent*, but operationally *autonomous* actors
- who interact through *negotiations* that involve bargaining, deliberation and intense power struggles
- which take place within a *relatively institutionalized framework* of contingently articulated rules, norms, knowledge and social imaginaries
- that is *self-regulating* within limits set by external agencies and
- which contribute to the production of *public purpose* in the broad sense of visions, ideas, plans and regulations.

This definition includes most of the features commonly ascribed to governance networks (Rhodes 1997a, 53). As such, it makes no claim to originality, but rather aims at capturing the essence of that which is commonly referred to by the notion of 'governance networks'.

Governance networks can take many different forms. They can either be self-grown or initiated from above. They might be dominated by loose and informal contacts or take the form of tight and formalized networks. They can be intra- or interorganizational, short-lived or permanent, and have a sector-specific or society-wide scope. The multiple forms of governance networks attest to the broad relevance of the concept for describing contemporary forms of societal governance.

Governance network theorists claim that governance networks are a distinctive mechanism of governance providing an alternative to the state and market (Mayntz 1991, 1; Rhodes 1997b, xii; Jessop 2002, 228ff.). As such, governance networks distinguish themselves from the hierarchical control of the state and the competitive regulation of the market in at least three ways. First, in terms of the relationship between the actors, governance networks can be described as a pluricentric governance system as opposed to the unicentric system of state rule and the multicentric system of market competition (Kersbergen & Waarden 2004, 151). Hence, state rule is based on the undisputed centrality of the sovereign state that turns everybody else into subjects of the law. Competitive market regulation is based on an infinite number of self-interested actors who are not bound by any common agendas, purposes or commitments. By contrast, governance networks involve a large number of interdependent actors who interact in order to produce public purpose.

Second, in terms of decision making, governance networks are based on a negotiation rationality as opposed to the substantial rationality that governs state rule and the procedural rationality that governs market competition

(Scharpf 1997, 46; Jessop 1999, 6–7). Whereas state rule aims to translate the substantial political values of the government into detailed laws and regulations implemented and enforced by public administrators, market-based regulation relies on the invisible hand that leads to a Pareto-optimal allocation of goods and services insofar as the procedures ensuring free competition are carefully observed. By contrast, governance networks make decisions and regulate various issues in and through negotiations between interdependent and autonomous actors that might facilitate negative or positive coordination (Scharpf 1994).

Finally, the means for ensuring compliance with important decisions also make governance networks stand out as a distinctive mechanism of governance. Hence, compliance is neither ensured by means of the legal sanctions of the state nor out of fear of economic loss on the market. Rather, it is ensured through trust and political obligation which, over time, become sustained by self-constituted rules and norms (Nielsen & Pedersen 1988).

The distinctiveness of the three mechanisms of governance implies that the governing of society must be based on a pragmatic choice between state, market and governance networks, or of the right combination of these different modes of governance (Jessop 2002, 246). Depending on the governance task or policy problem at hand, the central decision makers will have to choose between different governance mechanisms that have their own particular strengths and weaknesses.

Efficient and Democratic Network Governance?

Governance networks are not entirely new phenomena. They have a long track record and have had different names such as ‘corporatism’, ‘policy networks’, ‘heterarchy’ and ‘partnerships’ and ‘the negotiated economy’. However, what is new is not only the increasing use of governance networks, but also that the central decision makers to an increasing extent view governance networks as an efficient and legitimate mechanism of governance. Hence, both social science researchers and political decision makers praise governance networks for their potential contribution to efficient governance.

First of all, governance networks are claimed to have a large potential for proactive governance as the manifold actors can identify policy problems and new opportunities at an early stage and produce flexible responses that allow for adjustments to the complexity and variety of the concrete conditions (Klijn & Koppenjan 2000, 114; Kooiman 2000, 155ff.). Second, governance networks are seen as important instruments for the gathering of information, knowledge and assessments that can qualify political decisions. Network actors often have detailed knowledge relevant for political decision making, and when the knowledge of all the actors is added up, it represents an important

basis for making the intelligent choice of a feasible option (Kooiman 1993, 4; Scharpf 1999, 20). Third, governance networks are said to establish a framework for consensus building or, at least, for the civilizing of conflicts among stakeholders. Governance networks tend to develop their own logic of appropriateness that regulates the process of negotiation, the formation of consensus and the attempt to resolve conflicts (March & Olsen 1995, 27ff.; Mayntz 1991, 17). Finally, governance networks are supposed to reduce the risk of implementation resistance. If the affected actors are involved in the decision-making process, they will tend to develop a sense of joint responsibility and ownership for the decisions, which will oblige them to support, rather than hamper, their implementation (Sørensen & Torfing 2003, 614).

Now the problem is that the potential efficiency gains of governance networks are only fully realized in well-functioning governance networks. Changes in the composition of the network actors, the presence of unresolved tensions and conflicts, weak and ineffective leadership, frustration over the lack of visible results and external events that disturb the policy process can destabilize governance networks and turn them into malfunctioning talk shops. Careful network management might prevent major dislocations and mitigate the impact of large disturbances, but it is a difficult task to optimize the functioning of governance networks in all their dimensions (Kickert et al. 1997, 9; Koppenjan & Klijn 2004, 114).

As mentioned above, governance theorists and political decision makers have primarily focused on the ability of governance networks to enhance governance efficiency. As such, they have shown little interest in the democratic implications of governance networks. This disregard is problematic since empirical studies show (Klijn & Koppenjan 2004, 91) that governance networks not only have significant influence on the production of efficient policy outputs and policy outcomes, but also on the political decision-making process (Klijn & Koppenjan 2000; Skelcher et al. 2004; Sørensen & Torfing 2003). Therefore, it is about time that the question of the democratic implications of governance networks for democracy is taken up by both theorists of democracy and governance researchers.

Seen from the traditional liberal theories of democracy, the question about the democratic implications of governance networks is quickly answered. Governance networks undermine liberal democracy because they undermine representative democracy's institutions. Aggregative theories of liberal democracy (March & Olsen 1989, Chapter 7) see governance networks as a threat to the sovereign position of the elected government and as invoking an unfortunate blurring of the otherwise clear borderlines between state and society. As such, governance networks tend to jeopardize the core values of political equality and individual liberty. Integrative theories of liberal democracy are just as negative in their evaluation of the democratic implications of governance networks: they might expand the

scope of public deliberation, but this does not compensate the fact that governance networks subject civil society to particularistic power games and instrumental logics that prevent the development of a strong democratic culture oriented towards the promotion of the common good (Sørensen & Torfing forthcoming).

If, instead, we ask the governance network theorists about how they evaluate the democratic implications of governance networks, the answer is more nuanced. Governance network theorists tend to agree that governance networks represent a threat to the traditional institutions of liberal democracy, but they do not see them as a threat to democracy as such. They tend to agree that governance networks suffer from the absence of open competition, legitimacy problems, and the lack of transparency, publicity and accountability. Yet, at the same time, governance network theorists argue that governance networks might contribute to the development of new forms of democracy. Bob Jessop (2000, 17) and Anders Esmark (2003, 20) argue that governance networks play a central role in the development of democratic ways of linking different units of democratic governance. Rod Rhodes (1997a, 9; 1997b, xiv) argues that governance networks represent a functionally organized supplement to the territorially organized institutions of representative democracy. And Kooiman (1993, 36; 2000, 143) sees governance networks as a much needed way of enhancing the flexibility of our democratic institutions.

A new generation of post-liberal theorists of democracy agree with the governance network theorists that the institutions of representative democracy are not the only way to institutionalize democracy. New forms of democracy must be developed in order to cope with the current societal transformations that problematize the sovereign power of the nation-state, increase the interpenetration of state and society, and enhance the dispersion and fragmentation political identities. As such, post-liberal theorists of democracy point to a number of ways in which governance networks might contribute to the democratization of societal governance. Hence, governance networks might contribute to the establishment of an intermediate level of sub-elites that can challenge the dominant elites and enhance elite competition (Etzioni-Halevy 1993). Moreover, they might help to establish vertical organizational links between top-down representative democracy and self-governing forms of democracy present in civil society (Hirst 1994), and to establish horizontal links between different communities (Sandel 1996). Furthermore, they might enhance democratic legitimacy by facilitating political participation and influence on the output side of the political system (Fung & Wright 2003). Finally, governance networks might help to widen the scope for discursive contestation in society (Dryzek 2000). However, all the positive effects that governance networks might have on the democratic functioning of society as a whole can only be fully appreciated if we make sure that governance networks are themselves democratic.

Democratic Anchorage

Governance network theory and post-liberal theories of democracy draw our attention to the democratic potentials governance networks and urge us to contemplate how they can be further democratized. We sympathize with this venture. Governance networks have become a seemingly indispensable part of the governance of our complex, fragmented and multi-layered societies. So, instead of writing them off as inherently undemocratic, we should attempt to enhance their democratic performance.

Governance networks are not by definition 'democratic' or 'undemocratic'. Everything depends on their actual form and functioning, which again depends on the historical and political context in which they emerge and operate. Hence, in countries where democratic concerns hardly play any role in discussions about public-sector reforms, and where governance networks are merely 'the acceptable face of spending cuts' (Stoker 1998, 39), democratic network governance will rarely occur. By contrast, in countries where democratic concerns play a decisive role in governance debates and governance networks are promoted as a means of enhancing efficient and participatory governance, the prospect for the development of democratic network governance is much better.

Even in the most conducive historical and political context, the democratic performance of governance networks might be found wanting and call for improvement. However, in order to critically assess, and possibly improve, the democratic performance of governance networks, we need to develop an analytical model that measures to what extent a particular governance network is democratic. Such a model should not only measure the democratic character of the internal network interactions, but broaden the democratic audit to include an assessment of the external relations of the network to its political environment. Hence, we suggest that the democratic performance of governance networks is measured in terms of their *democratic anchorage*.

Governance networks are democratically anchored to the extent that they are properly linked to different political constituencies and to a relevant set of democratic norms that are part of the democratic ethos of society. As such, democratic anchorage is a function of the different forms of democratic legitimacy that are obtained when a governance network:

- is controlled by democratically elected politicians;
- represents the membership basis of the participating groups and organizations;
- is accountable to the territorially defined citizenry; and
- follows the democratic rules specified by a particular grammar of conduct.

The democratic legitimacy obtained in each case is a matter of degree rather than a question of all or nothing. The four anchorage points re-invoke

classical themes in liberal theories of democracy. However, as we shall see, it is necessary to reformulate the classical notions of liberal democracy in the context of interactive network governance and in the light of new theoretical insights. Let us consider each of the four anchorage points in turn.

Anchorage in Democratically Elected Politicians

The basic rationale for aiming to anchor governance networks in democratically elected politicians is that government control of governance networks helps to make sure that the public policy and governance produced by these networks is in line with the popular will expressed by the political majority of the elected assemblies. Hence, elected politicians can lend democratic legitimacy to governance networks in so far as they are capable of controlling the formation, functioning and development of governance networks.

Now, the problem is that the very idea of exercising political control with governance networks is flawed. Governance networks are defined in terms of their capacity for self-regulation and cannot be controlled through the exercise of sovereign power within a hierarchical system based upon the giving of orders, detailed instructions and unconstrained overruling of discretionary decisions made by governance networks (Mayntz 1991, 10). Hence, we need to rethink the notion of political control in order to fully recognize the importance of mutual respect and reciprocity in the relationship between government and governance networks.

Following this line of argument, the governance network literature has aimed to redefine political control in terms of what they tend to call 'meta-governance' (Kooiman 1993, 2; Jessop 2002, 240ff.). Meta-governance designates the endeavour to regulate self-regulating governance networks by shaping the conditions under which they operate. It involves the attempts of politicians, administrators or other governance networks to construct, structure and influence the game-like interaction within particular governance networks.

The governmentality analytics developed by Michel Foucault (1991) and his associates clearly brings out the double-handed character of meta-governance. Hence, drawing on the works of Mitchell Dean (1999, 165), we might conceive meta-governance as a governing practice that combines 'technologies of agency' with 'technologies of performance'. Technologies of agency aim to mobilize the energies, wills and capacities of free and relatively autonomous actors, whereas technologies of performance aim to shape the interdependencies between the political actors as well as the political, institutional and discursive conditions for their interaction. Hence, meta-governance attempts to recruit free, active and self-responsible actors ('subjectification') while structuring the conditions for their interaction in order to ensure conformity with some generally defined objectives ('subjection'). On the one hand, free and active participation in interactive governance

processes is encouraged through free choice, public-private partnerships, public hearings, user boards, ad hoc negotiations, strategies for empowered participation and the creation of incentive structures. On the other hand, the interactive policy processes are measured, assessed and evaluated according to a multiplicity of binding norms, standards, bench marks, quality indicators and objectives that are specified either through informal dialogues and negotiations or in formal policy statements and contracts. As such, meta-governance facilitates and constrains the policy processes in self-regulating networks without necessarily retreating to hierarchical command and domination. However, as Fritz Scharpf (1994, 40) maintains, meta-governance is sustained, in the last instance, by the underlying threat that the interactive governance networks will be abandoned or deprived of their influence if they are not delivering what they are supposed to deliver in terms of responsible self-regulation. As such, network governance always takes place in the 'shadow of hierarchy'.

The democratic legitimacy of governance networks is enhanced in so far as they are meta-governed by democratically elected politicians. One of the problems we face here is that not all politicians are equally capable of conducting meta-governance. Politicians tend to be divided into A and B teams. The A team consists of politicians who, influenced by the New Public Management discourse, think and act strategically in order to develop the public sector as a whole, choose the right mechanism of governance, and maximize outputs and outcomes. The B team consists of politicians who in a more narrow-minded way are engaged in interest-based single-issue politics. The meta-governance of elected politicians is most often conducted by politicians from the A team (Sørensen & Torfing 2003, 629).

Another problem is that in many cases the politicians from the A team leave the lion's share of meta-governance to public administrators who function as liaison officers between the elected government and the self-regulating governance networks. The public administrators seldom act on the basis of clear and precise instructions from the politicians, but often have to improvise while anticipating the opinions and reactions of political leaders. However, the administrators have quite different approaches to their role as meta-governors. As such, they tend to be divided into a group of pragmatically oriented entrepreneurs and a group of more legalistically orientated bureaucrats. Again, it is the former group that is most actively involved in meta-governance. The fact that meta-governance in most cases is conducted by a somewhat exclusive group of politicians and administrators is not only a problem for the democratic legitimacy of network governance, but also for the legitimacy of the democratically elected governments (Sørensen 2004).

We can distinguish between three different forms of meta-governance that all enhance the democratic legitimacy of network governance (Kickert & Koppenjan 1997, 53). The first form of meta-governance is *network design*,

which involves deliberate attempts to shape and structure governance networks. Politicians might actively encourage the formation of particular forms of governance networks, or decide to rely on some pre-established governance networks. In the process whereby the governance networks are formed, the meta-governing politicians might be able to influence how the lines of inclusion and exclusion are drawn, either directly by means of formal laws and regulations or indirectly by making it a condition for public cooperation and funding that certain actors are included or excluded. Network design also involves attempts to empower selectively some actors rather than others by giving them important resources and capacities that turn them into key players in the governance network. Finally, network design involves attempts to determine the scope, decision-making competences and internal procedures of governance networks. Expanding the political scope of governance networks to include important political issues and delegating political competences that facilitate a proactive rather than a reactive engagement in the policy process is crucial for mobilizing the energies of the network actors.

The second form of meta-governance is *network framing*, which involves the formulation of the political goals and objectives to be pursued by governance networks. The scope for the self-regulation of governance networks can be preserved to the extent that the overall policy objectives are broadly defined, but the degrees of freedom are often narrowed considerably by the operationalization of the broadly defined objectives into detailed performance indicators and floor targets. Network framing also involves the allocation of fiscal and other important resources to governance networks, and sometimes even the crafting of a legal framework that facilitates and constrains the operation of the otherwise self-constituting governance networks. As such, network governance combines nicely with the kind of goal and framework steering advocated by the New Public Management doctrine. However, we should not forget the importance of the discursive framing of governance networks. Story telling either in terms of public political accounts about societal problems, moral values and common futures, or in terms of the propagation of 'best practice', can be used deliberately to influence the policy-making processes within governance networks. No matter what kind of network framing is applied, it must be backed by the continuous monitoring and a critical evaluation of the policy output produced by the governance networks. Hence, politicians have a crucial gatekeeper function in relation to governance networks.

The third form of meta-governance is *network participation*. Politicians cannot depend entirely on their public administrators' participation in governance networks, but must themselves participate in these in order get first-hand knowledge of the network processes and exert their political authority. Through direct participation, the politicians gain a detailed knowledge of the ideas, plans and activities of the governance network and this

facilitates critical evaluation and political intervention in the policy-making process, especially in the early phases where decisions are easier to modify or change without overruling and upsetting the entire network. Direct participation in governance networks might also enable elected politicians to counteract, or even prevent, the predominance of particularistic sector interests pursued by a distributive coalition. Politicians can use their influence to foster the formulation of a broad and inclusive policy agenda and to encourage that narrow sector interests and opportunistic strategies are modified in the light of politically negotiated conceptions of the common good. Finally, active participation in the internal processes of deliberation and bargaining might help to align the policy decisions of a particular governance network with the objectives of other governance networks and the overall goals of the government.

Elected politicians must use a mixture of all three forms of meta-governance in order to 'control' and thereby democratically sanction what goes on in the various governance networks. Reliance on network design and network framing tends to favour the A team of executive politicians, whereas network participation opens up for a broader participation of politicians that might include single-issue oriented politicians from the B team.

The big challenge is not only to engage as many politicians as possible in the meta-governance of governance networks, but also to prevent elected politicians and their public administrators from meta-governing too much or too little. There are no ways to precisely define the adequate amount of meta-governance, but if the public authorities' meta-governance is too tight and too overwhelming, the self-regulating network processes will tend to erode (Kooiman 1993, 255). However, a meta-governance that is too loose and too unambitious can also be a problem, not only for the attempt by elected politicians to 'control' network governance processes, but also for the ability of governance networks to function properly and realize their potentials for ensuring an effective societal governance (Klijn & Koppenjan 2000, 115).

Anchorage in the Membership Basis of Participating Groups and Organizations

The basic rationale for anchoring governance networks in the membership basis of participating groups and organizations is that the members of these groups and organizations constitute a demos of directly affected people that the different network actors must represent in order for the governance network to obtain democratic legitimacy (Sørensen & Torfing 2003, 617). Governance networks involve stable horizontal interactions between actors who implicitly or explicitly represent a plurality of informal groups and/or formal organizations. The interactive policy processes in governance networks are democratically legitimate insofar as they reflect, or at least take

into account, the interests, preferences and opinions of the members of these different groups and organizations.

However, the classical notion of representation is problematic as it wrongly assumes that a pre-defined interest or preference is reproduced in an undistorted way at the level of representation (Pitkin 1972; Laclau 1993). The idea of an unbiased one-to-one representation of a pre-given interest or preference is not only difficult to realize in network-based policy processes, but is also theoretically flawed as it presupposes the presence of a fully constituted object of representation and assumes that the process of representation does not add anything to the object of representation. By contrast, we shall contend that the interests and preferences to be represented are never fully constituted since they are formed within a determinate discursive context that is constantly destabilized by dislocatory events that reveal the ultimately undecidable character of all social and political identities. As such, the interests and preferences of the political actors are always marked by the non-totalizable openness of the policy discourse in which they are formed (Laclau 1990, 1993).

The ultimate failure to construct a fully constituted preference or interest means that the performative act of representation becomes constitutive of the interests and preferences it represents. The interests and preferences of the participating groups and organizations are defined by the way they are articulated at the level of representation. There might be a discrepancy between how these preferences and interests are conceived and articulated within the membership basis and at the level of representation in the governance network. However, the constructed representations cannot be seen as a mere distortion of some primordial object since there never was a fully constituted interest or preference in the first place, but only a vague and ambiguous ensemble of conceptions, wants and beliefs. Therefore, the relation between the object and its representation must be evaluated in terms of the identification of the membership basis with the discursive forms through which its interests and preferences are represented. The crucial question is not whether the discursive forms of representation distort some true and original interest or preference, but rather whether those who the representatives claim to represent identify themselves with the discursive forms of representation (Torfing 1999, 183ff.).

The production of *identification* with the discursive forms of representation is a result of a complex interaction between the represented people and their representatives. First, a number of representatives must be selected and transported to the level of representation. Then, the representatives must construct and disseminate a particular discursively constructed representation of the preferences and interests of the represented and aim to pursue the represented preferences and interests in and through political interaction with the other representatives. Finally, those who are represented must

make an informed evaluation of the performative act of representation and express their satisfaction or dissatisfaction with their representatives. The tacit or explicit acceptance of the performance of the representative serves as an indicator for the represented's degree of identification with the representatives.

The representatives participating in governance networks might come from a large variety of public and private groups and organizations. Who will finally represent these groups and organizations depends on the importance and prestige of the governance network. Important and prestigious governance networks are more likely to recruit higher ranking leaders of the respective groups and organizations than the less important and prestigious networks. Formal organizations will often appoint alternates who replace the permanently appointed network representatives in case of their absence, whereas informal groups will often have a more unstable and contingent pattern of representation and sometimes even subject the representative function to principles of rotation or pragmatic considerations about who is available and who wants to go.

The democratic anchorage of governance networks through representation can be broken down into three different aspects. The first aspect of the performative act of representation is the ability of the membership basis to *select and instruct their representatives*. The representatives should be selected in an open and transparent way and the membership basis of the represented groups or organizations should have a chance to instruct their representatives about their key concerns and ideas pertaining to the issues dealt with in the governance network. Indeed, there should be opportunities for the members of the participating groups and organizations to discuss whether they should participate in a particular governance network, whom should represent them, and what the role and position of the representatives should be.

The second aspect of the performative act of representation is the ability of the membership basis to form an *informed opinion about their representatives' performance in the governance network*. This requires direct and/or indirect access to information about the activities of the governance networks and the reflections and actions of the representatives in relation to relevant issues. Direct access to information might be provided by written or oral briefings of the membership basis, or by the circulation of minutes from meetings in the governance network. Indirect access to information might be provided through the members' own search for information on the Internet, in newspapers or through other mass media.

The third aspect of the performative act of representation is the ability of the membership basis to *express different opinions and criticize the representatives' performance in the governance network*. The representatives participating in different governance networks might not face any serious criticisms

from their membership basis. However, this can either reflect the presence of a general identification with what they are doing, or the absence of fora and opportunities for expressing smouldering dissatisfaction or open critique. In the latter case, the relation of representation between the membership basis and its representatives is severed and the representatives are cut off from the people they were supposed to represent. The membership basis of a particular group or organization should have the opportunity to select and instruct its representatives, to receive relevant information about how it is represented by these representatives, and to express the support for, or critique of, their performance. It might demand a good deal more from the members in terms of resources, capacities and self-confidence to express dissatisfaction and raise criticisms against the representatives, but the selection of, and communication with, the representatives does not require anything out of the ordinary.

The crucial challenge for the attempt to democratically anchor governance networks in the membership basis through a relation of representation is to avoid 'tying the hands and feet' of the representatives through the issuing of closely defined mandates. It is virtually impossible to participate in political negotiations within a governance network on the basis of a closely defined mandate. Network governance not only requires the ability to give and take in relation to a pre-given set of preferences or interests, but also requires the possibility of developing and responding to new political initiatives that modify and change the articulated preferences and interests through power-ridden forms of deliberation. Therefore, the best way of enforcing representation is by ensuring the possibility of an ex-post critique of the performative act of representation that the representatives will try to anticipate and pre-empt. Hence, governance networks are democratically anchored in the membership basis of the participating groups and organizations, if the representatives act reflexively in order to constantly create and recreate points of identification and actual support.

Anchorage in a Territorially Defined Citizenry

The basic rationale for anchoring governance networks in a territorially defined citizenry derives from the fact that democratic legitimacy is not only obtained through being accountable to the demos constituted by the people who are directly affected by the results of certain governance networks. Governance networks must also be accountable to the wider demos constituted by the people who are indirectly affected by the decisions taken in the governance network. The citizens that live within the local, regional, national or transnational territory within which a certain governance network is making authoritative decisions should be able to hold the governance network accountable for its policy output and the policy outcomes it produces. Of course, elected politicians help to anchor governance networks in the

citizens within a given territory, but there is a long way from a group of dissatisfied citizens to the responsible governance network if the citizens have to operate and get influence through the elected politicians. Indeed, citizens should have a shorter and more direct way of holding a particular governance network publicly accountable for its public policy making.

The classical notion of public accountability assumes that the central political decision makers can be identified and held responsible for a certain policy outcome. However, the general problem with this assumption is that the presence of complex causalities often makes it impossible to determine the reason why an attempt to solve a problem or exploit new opportunities failed. There is always the possibility that contingent circumstances beyond anyone's control caused the failure. Even in those cases where the policy outcome can be closely linked to a certain policy output, the specific problem in relation to governance networks is that the responsibility for the key policy decisions is almost impossible to place (March & Olsen 1995, 141ff.). The positive identification of the responsible decision makers within a particular governance network will not even be able to ensure public accountability since there is another specific problem in relation to governance networks in that it is extremely difficult to hold the decision makers responsible and impose negative sanctions. The responsible network actors cannot be expelled at the next public election since they are not elected, but (self-)appointed, and since there might not be anybody to replace them. The only possible sanctions seem to be public scorn and political marginalization of larger or smaller parts of the governance network in question.

However, the problems relating to the democratic demand for the public accountability of governance networks should not make us give up the fundamental ambition of facilitating *public contestation* of political decisions taken in governance networks. Facilitation of public contestation is a must if we are to prevent governance networks from degenerating into closed and secret clubs that operate in the dark and without public approval (Fox & Miller 1995, 118ff.). Public contestation basically involves public debate and critical scrutiny of the ways policy problems are defined, the alternative policy options and the figures and arguments advanced to support them, the procedures that lead to the choice of a particular option, and the direct and indirect results of the implemented policy. In other words, governance networks and the participating actors must provide public accounts of why, how and with what result they did what they did, and they must engage in public dialogue with their opponents and be sensitive to the criticisms that are raised. What we are talking about here is a new kind of narrative accountability where the governance network's accounts are publicly contested by critical counter-accounts (March & Olsen 1995, 141ff.).

The counterpart of the governance network is the citizens within a certain territory, but we should not be under the illusion that all citizens will have

their eyes tightly fastened on the policy output of the numerous governance networks and be ready to criticize what they find wrong or wanting. We will have to content ourselves with the critical and public engagement of mass media, scientific and professional experts, interest organizations, social movements, other governance networks and different kinds of empowered individuals. Public audit and critical scrutiny require a certain amount of resources, capacities and political interest that we cannot commonly expect to find in unorganized groups of citizens with low education and income.

There are three crucial requirements that must be fulfilled in order to facilitate public contestation of the accounts produced by governance networks and the participating organizations and groups. The first requirement is *transparency*. Governance networks and their key policy decisions should be visible to the general public, and their public accounts for why and how the governance network made these decisions, and with what results, should be comprehensive, informative and accessible for lay people. Overly brief policy statements, misleading figures and arguments, and a specialized or technical jargon will leave citizens in the dark as to what goes on in the governance networks.

The second requirement is *access to public dialogue with the governance network*. The accounts of the deeds of various governance networks can be made publicly available on the Internet or through policy reports, hearings, press meetings, mass media coverage or availability of the key network actors in accessible public spaces. If there are citizens who, at some point, want to take issue with the figures, arguments and stipulations presented in the publicly available accounts, they must have the possibility to engage in a dialogue with the members of a particular governance network. The citizens should be able to ask questions, raise concerns, advance criticisms and organize protests, and the members of the governance network should respond in an appropriate way without scorn, ridicule or any other dismissive attitudes.

The third requirement is *responsiveness on the part of the governance network*. It does not help much to foster a critical dialogue between the members of a governance network and a territorially defined citizenry if the former are not listening to the criticisms raised and are unwilling to take these into account by readjusting the course of action. Public contestation is reducible neither to the repressive tolerance of critical voices nor to a polite and well-informed dialogue. It must also have the possibility of affecting and influencing the governance network. Just as critical citizens must be prepared to learn that their criticisms are ill-founded or misguided, the central decision makers within a governance network must be prepared to respond positively to constructive proposals, make concessions or at least compensate the losers. The responsiveness of governance networks will not follow automatically from the presence of a communicative rationality that urges the network participants to accept the forceless force of the better argument

(Habermas 1987, 1989), but is rather a result of their identification with contingently constructed democratic norms that urge them to respect their opponents' right to be heard and try to find ways of responding to or even accommodating some of the criticisms that are raised (Connolly 1991; Mouffe 2000). Even in the fiercest of political battles, there will be ways of making symbolic concessions that bear witness to the presence of agonistic respect.

Governance networks must provide the basic conditions for public contestation by producing accessible public accounts and engaging in dialogue with the critical groups of citizens, but the citizens must also do their part in terms of scrutinizing the public accounts and addressing the problems they see in public. This requires an active and politically interested citizenry with a relatively large amount of individual and/or organizational resources and capacities. However, in order to facilitate the engagement of less resourceful groups in the public contestation of network governance, deliberate attempts must be made to increase their political and social capital, either through political participation in governance networks or through local regeneration projects. The challenge in relation to the call for public contestation is to avoid the relation between governance networks and a territorially defined citizenry being conceived in terms of a relation of representation. One easily slides from the idea that all citizens should be able to challenge the political decisions of governance networks to the idea that these networks should represent the citizens as a whole. However, governance networks construct their own *demos* of stakeholders which are much more exclusive than the *demos* defined by the territorial boundaries of the polity that is affected by the decisions and wider repercussions of various governance networks.

Anchorage in Democratic Rules and Norms

The basic rationale for anchoring governance networks in democratic rules and norms is to ensure that governance networks are not only democratically anchored in a series of external political constituencies, but that the internal processes and interactions also live up to some commonly accepted democratic standards. Hence, democratic legitimacy can also be obtained if governance networks and the actors within them follow rules and norms inherent to a democratic grammar of conduct (Mouffe 1993).

In the same way as the call for justice provides the basis for the deconstruction of actual laws (Derrida 1992), our call for a 'democracy-to-come' provides the basis for the deconstruction of historical forms and accounts of democracy (Derrida 1994). However, in order to assess the democratic character of actual forms of governance, we need to invest the ungraspable vision of a 'democracy-to-come' in a set of contingent democratic standards. The democratic rules and norms that are relevant for an assessment of the

internal processes in governance networks can be derived from many different currents of democratic theory. Some can be traced back to the aggregative and integrative strands of liberal democratic theories (March & Olsen 1989), whereas others are rooted in the new post-liberal theories of democracy (Sørensen & Torfing forthcoming). The interweaving of theoretical discussions of how to define democracy and the political discussions of how to institutionalize democratic forms of governance in the present societies means that democratic rules and norms are subject to endless political contestations. Hence, the attempt to draw up a complete or unbiased list of democratic norms and rules is doomed to fail. At best, we can draw up an open-ended list of relevant and accepted, but ultimately contingent, rules and norms that can help us to assess the democratic performance of governance networks.

However, admitting the incomplete and political character of the democratic rules and norms that are commonly accepted in most Western societies still leaves us with another and even more delicate problem of what it means to follow a rule. We might be able to show that some rules and norms are relevant, consistent and necessary for ensuring democratic decision making in governance networks, but we cannot expect governance networks and the political actors who inhabit them to follow such rules in a mechanical way. Ludwig Wittgenstein (1986) has taught us that rule-following is not as simple as it may seem. When the network actors have succeeded in matching a given situation with a certain rule on the basis of an institutionalized logic of appropriateness (March & Olsen 1989), the problems have only just begun, for, as Wittgenstein demonstrates, rules are structurally ambiguous and there are always numerous ways to follow a particular rule. The search for another rule that can help us to clarify the content of the first rule leads to an infinite regress that we can only avoid by making our own constitutive reformulation of the different rules we encounter as moving along. In that case, rules become merely an instance of their usage, although there are clearly limits to the usage since the actors must be able to show that they act in accordance with the rules they encounter (Staten 1985). In concrete terms, this means that the democratic rules and norms that are supposed to govern the internal processes of governance networks will only be followed in and through their re-articulation and re-enactment.

The democratic grammar of conduct around which the pragmatic and contextual re-articulation of rules and norms takes place includes three kinds of normative regulations that relate to the formation, functioning and output of governance networks. The first kind of normative regulations are the demands for the *inclusion of all relevant and affected actors* and the *construction of open-ended policy discourse*. Not only should all the directly affected actors be included in the governance networks, but the different actors that are relevant for the production of public policy and governance in a particular policy area should also be included. There might be some of these actors

who can be legitimately excluded either because they do not want to be included or because they reject the entire policy agenda of the governance network and refuse to cooperate with the included actors. However, the excluded actors should at least be given the opportunity to be heard and to form an alternative governance network.

Inclusion is important, but it is not enough to include all the affected and relevant actors that will and can contribute to the production of public policy and governance. It is not enough to avoid illegitimate external exclusions of affected and relevant actors since there is also the risk of an internal exclusion of actors who become politically marginalized either by the initial agenda setting or by the storyline guiding the policy-making process (Young 2000). Avoiding internal exclusion requires that the political agenda of the governance network, at least in the beginning, is so broadly and vaguely defined that it is accessible for all the included actors. It is also necessary that the storyline that defines the policy problem and the range of appropriate policy solutions is structured around relatively empty signifiers that are open for reformulation and reinterpretation, and thereby facilitate actors with different views putting forth claims and ideas that are deemed valid and not excluded a priori from the negotiation table (Hajer 1995; Torfing 2004).

The second kind of normative regulations concerns the demand for *democratic deliberation* based on voice and exit, agonistic respect for other people's opinions, commitment to reach a 'rough consensus', and a relatively transparent and responsible decision making. All the actors in the network should have an opportunity to express their views without being censored by demands that one should be reasonable, articulate, moderate, civilized and so on (Young 2000), and if they cannot find adequate support for their views they should be free to leave the governance network and form or become part of another network. Moreover, network actors with conflicting views should not treat each other as enemies to be extinguished by all possible means, but rather see each other as adversaries who might strongly disagree with each other, but who respect each others' right to voice an opinion. Network actors may attempt to influence each other by means of controlling the agenda setting, persuading and confronting each other, or manipulating their opponents' subjective conception of their interests (Lukes 1974). Yet no matter how much they struggle and bargain with each other, they should be committed to reaching an inclusive compromise in the shape of a 'rough consensus', where differences and grievances remain, but are tolerated. Finally, decisions about public policy and governance should be reached through a relatively transparent process where everybody knows the terms of the debate, the options and the final decisions. Hence, standard procedures for ensuring decision-making transparency and fair voting should be observed. When a governance network has produced a certain policy output, the key actors should assume responsibility for the decisions that have generated this output.

The third kind of normative regulations is the demand for a *democratic improvement of society and the future system of governance*. This can be obtained by the production of policy outcomes that enhance social and political justice (Young 2000; Fung & Wright 2003). It can also be obtained by ensuring that the interactions within the governance network contribute to augmenting the political empowerment of the participating actors. Finally, it can be obtained by self-reflexive political processes that stimulate an active search for new forms of democracy that can contribute to a further democratization of the public policy-making processes. Democracy never reaches a final form, neither as a perfect set of institutions nor as a regulative idea. Democracy must be constantly developed through plural, partial and experimental methods, and governance networks should be judged on their ability to facilitate such a development (Dewey 1927).

The challenge when aiming to anchor governance networks in democratic rules and norms is to avoid demanding a perfect and uncompromising compliance with all rules and norms at all times since that might seriously jeopardize the prospect of efficient governance and policy making which, in the last instance, is also an important democratic norm. Some of the democratic rules and norms listed above might increase governance efficiency, but others might act as a constraint on governance efficiency if they are pursued in an inflexible manner. As such, it is important to achieve a balance between efficiency and democracy by readjusting and renegotiating the normative regulations on a pragmatic basis.

We have described four different ways in which governance networks can be democratically anchored. The assessment of the democratic anchorage of particular governance networks on the basis of these criteria is likely to result in a mixed judgement. Often, governance networks will be judged to be anchored democratically in some respects, while not in others. Such a mixed judgement might help the self-regulating network actors and the political meta-governors to democratize the governance network in question. However, in a comparative analysis of the democratic performance of governance networks, a mixed judgement on the basis of many different parameters is not very helpful. In this situation an a priori shortlist of the critical minimum conditions that should be fulfilled in order for a governance network to pass as democratic, or the construction of a weighted index of the fulfilment of the different criteria, will help solve the problem.

Democratizing Governance Networks through Meta-governance

Governance networks have been accused of being undemocratic due to their closed and opaque character and lack of accountability. However, the

democratization of governance networks is not ensured merely by demanding that the decision-making process be more transparent and the network actors held accountable for the policy and governance they produce (Jessop 2000, 17). As we have argued above, there are many different actors, inside and outside governance networks, who can play an active role in the democratization of governance networks: network actors, members of the participating organizations and groups, citizens within the relevant territory and politicians. We believe that politicians should play a key role in the efforts to improve the democratic anchorage of governance networks. Not only do they constitute a resourceful, collectively oriented and democratically committed group, but it is also the only group we can hold directly responsible for the eventual lack of democratic anchorage.

The minimum requirement is that politicians take on the task of controlling what goes on in the self-regulating governance networks by exercising meta-governance. Politicians must actively engage in the initial design of governance networks, in the internal decision-making processes, and in the overall framing of the policy that is produced in and by governance networks. However, a recent study of how Danish politicians interpret their role as meta-governors reveals a number of obstacles for the politicians' engagement in the various forms of meta-governance (Sørensen 2002). First, their active role in network design is often prevented by the fact that this task is regarded as belonging to public administrators. Politicians are only supposed to come onto the stage when the governance networks are already formed on the basis of administrative concerns for efficient policy making. Second, politicians' active participation in governance networks is often constrained by the New Public Management discourse that aims to establish a rigid and impenetrable boundary between 'steering' and 'rowing' or, in other words, between the formulation of the overall policy objectives, which is the task of politicians, and the art of government through interaction with relevant stakeholders, which is the task of public administrators. According to this division of labour, politicians should not participate in the 'rowing' that takes place in governance networks. Finally, the role of politicians in the framing of governance networks is undermined by their inability to construct the overall visions, plans and policy objectives. None of these can be developed in the political vacuum in which the New Public Management discourse places politicians. Politicians have become isolated at the top of the pyramid and lack detailed knowledge about the problems, challenges and policy options within the different policy areas. This makes it difficult for them to formulate the overall framework for more detailed network-based policy decisions. In short, politicians cannot do the 'steering' if they are not part of the 'rowing'.

It is important to try to remove some of these obstacles to politicians' meta-governance of governance networks, and one of the problems seems to be the predominance of the New Public Management discourse. However,

politicians should not only aim to control governance networks through different forms of meta-governance. They must widen the scope of their meta-governance to include deliberate attempts to strengthen the other democratic anchorage points as well. First, they must demand that governance networks produce comprehensive, informative and accessible accounts of their deeds; empower the citizen to be able to critically scrutinize these accounts; and create opportunities for public dialogue between the network actors and the citizens. Second, they must put the issue of democratic anchorage in the membership basis of participating groups and organizations on the agenda, respect the need of the other network actors to go back and consult with their constituency, and help to empower the ordinary members in various groups and organizations (e.g. by funding local resource centres). Finally, they must create and sustain democratic identities and values, shift the balance between the concern for efficiency and the concern for democracy in favour of the latter, and create incentives for governance networks to evaluate their internal interactions according to democratic rules and norms.

Politicians are together with other external constituencies, and together with the network actors, responsible for the democratic anchorage of governance networks. However, in order to facilitate a precise and regular measurement of the degree of democratic anchorage in particular governance networks, our diagnostic notion of democratic anchorage must be further operationalized and developed into a proper democracy-assessment tool. This will be a task for future research that should preferably be conducted in close cooperation and dialogue with practitioners with experience from participation in governance networks.

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